

Assignment Brief: Navigating Sexual Rights and Sexual Safety in Aged Care

Course/Module: Deliver care using a palliative approach

Assessment Weight: 100 Marks (100% of Assignment Grade)

Format: ShortEssay/Critical Responses

Expected Length: 300–450 words per question (3,000–4,500 words total)

Instructions to Students

This assignment requires you to critically evaluate contemporary frameworks in institutional care, ethics, law, and quality improvement. While these themes may have been introduced in course webinars, **every response must be grounded in independent external research.**

You must cite external literature, legal statutes, sociological concepts, or comparative international frameworks as specified in each prompt. Ensure all sources are correctly cited using the required academic referencing style (e.g., APA 7th Edition).

Question 1:

Under the Serious Incident Response Scheme (SIRS), into which priority category does "unlawful sexual contact or inappropriate sexual conduct" fall, and what is the mandatory timeframe for reporting these incidents to the Commission?

Question 2:

According to SIRS data presented in the webinar, what percentage of reported unlawful or inappropriate sexual conduct notifications involve another care recipient as the subject of allegation, and what percentage involve staff members?

Question 3:

What proportion of impacted individuals and alleged perpetrators in unlawful sexual contact SIRS notifications present with moderate to severe cognitive impairment, and does this require a formal clinical diagnosis to be reported?

Question 4:

What core legal presumption does the Aged Care Act establish regarding an older person's ability to make choices about their intimate and sexual relationships?

Question 5:

The Commission identified six priority practice uplift areas for its Phase 1 guidance. What are three of these specific focus areas designed to support care staff and providers?

Question 6:

In Scenario 1 (June and Ben), how does the expert panel advise providers to handle capacity assessments when an older resident with dementia experiences fluctuating cognition?

Question 7:

In Scenario 2 (George), why do the panelists advise against using terms like "inappropriate" or "sexual misconduct" when a resident with dementia displays sexualized behaviors, and what underlying factors should staff investigate instead?

Question 8:

What specific behavioral or emotional warning signs should care staff actively observe to determine if an older person may be experiencing duress or non-consensual sexual harm?

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Question 9:

According to panel reflections, what common oversight occurs during institutional responses to sexual safety incidents, and why is a trauma-informed focus on the victim-survivor essential even when cognitive impairment is present?

Question 10:

According to Dr. Duncan McCrae, what are the primary risks to a resident's human rights, dignity, and quality of life when aged care providers become excessively risk-averse regarding sexual expression?

Marking Scheme & Grading Rubric (100 Marks Total)

Each of the 10 questions is worth **10 marks**, assessed against the following criteria:

High Distinction	9 - 10	Exceptional synthesis of external research. Argument is highly critical, nuanced, and perfectly directly addresses all parts of the prompt. Flawless referencing.
Distinction	7.5 - 8.5	Strong integration of external concepts. Solid analysis with clear logical flow. Minor gaps in depth or minor formatting issues.
Credit	6 - 7	Adequate research, though relies on basic definitions. Analysis is present but lacks critical depth or systemic insight. Competent writing and referencing.
Pass	5 - 5.5	Barely addresses the prompt. Heavy reliance on course materials rather than independent external research. Descriptive rather than analytical.
Fail	0 - 4.5	Fails to answer the prompt. Missing external research entirely. Poorly structured, lacking citations, or demonstrating fundamental misunderstandings of the topic.